

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Gerard Luker, :
 :
 : Index Number:
 : Date Purchased:
 : Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Grabiell Rosado, Shield 20900 of the 52 :
Precinct and New York City Police Officer John Doe, said :
name being fictitious and presently unknown, :
 : Plaintiff's residence is:
 : 75 Lasalle Street
 : New York NY 10027

Defendants :
-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: June 25, 2021
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Grabiell Rosado, Shield 20900 of the 52 Precinct

New York City Police Officer John Doe, said name being fictitious and presently unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF ~~BRONX~~ X

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Gerard Luker,

Plaintiffs

-against-

City of New York, New York City Police Department,
Police Officer Grabiell Rosado, Shield 20900 of the 52
Precinct and New York City Police Officer John Doe, said
name being fictitious and presently unknown,

Defendants
-----X

:
: VERIFIED COMPLAINT
:

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That all times hereinafter mentioned, Gerard Luker, hereinafter referred to as "LUKER"
is a resident of New York County, State of New York.

2. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was
a municipal corporation duly existing under and by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was
a corporation doing business in the State of New York.

5. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK,
owned a certain police department in conjunction with its municipal functions.

6. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, operated said police department.

7. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, maintained said police department.

8. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, managed said police department.

9. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, supervised said police department.

10. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, controlled said police department.

11. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, hired, employed and/or furnished police officers to act as servants, agents, employees and/or representatives of the defendant THE CITY OF NEW YORK.

12. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was a municipal corporation duly existing under and by virtue of the laws of the State of New York.

13. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was a corporation doing business in the State of New York.

14. That at all times hereinafter mentioned, Police Officer Grabiell Rosado, Shield 20900 of the 52 Precinct, (hereinafter referred to as "ROSADO") was employed by the New York City Police Department.

15. That at all times hereinafter mentioned, New York City Police Officer John Doe, said

name being fictitious and presently unknown (hereinafter referred to as "DOES") were employed by the New York City Police Department.

16. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, maintained the 52 Precinct.

17. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, the 52 Precinct.

18. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, supervised the 52 Precinct.

19. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, controlled the 52 Precinct.

20. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired, employed, trained and supervised ROSADO to act as servants, agents, employees and/or representatives of the defendant NEW YORK CITY POLICE DEPARTMENT.

21. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired, employed, trained and supervised ROSADO to act as servants, agents, employees and/or representatives of the defendant NEW YORK CITY POLICE DEPARTMENT.

22. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired, employed and/or furnished police officers to act as servants, agents, employees and/or representatives of the defendant NEW YORK CITY POLICE DEPARTMENT.

23. That on or about October 28, 2019, at approximately 6:00 PM in the vicinity of Grand

Concourse and East 188 Street, Bronx NY, Plaintiff had attempted to speak with a woman he found attractive and when he was walking away from her, ROSADO and DOES tackled Plaintiff to the ground.

24. That after Plaintiff was tackled to the ground, ROSADO and DOES forcibly and unnecessarily twisted his arms to handcuff him.

25. That as a result of the ROSADO and DOES, Plaintiff experienced a fracture of left wrist and arm, substantial pain and swelling.

26. That at no time did Plaintiff engaged in any criminal or unlawful conduct.

27. That at no time did Plaintiff forcibly touch or sexually abuse the aforementioned woman.

28. That at no time did Plaintiff resist the arrest.

29. That at no time did Plaintiff do anything to cause ROSADO or DOES to tackle him.

30. That the actions of ROSADO and DOES constituted excessive force.

31. That at no time did ROSADO or DOES attempt to stop Plaintiff by in non-violent, lawful manner.

32. That after Plaintiff was arrested he was transported to the 52 precinct.

33. That while Plaintiff was in the 52 precinct, he was placed in a cell with other males for several hours.

34. That while at the 52 precinct, Plaintiff was subjected to a strip search and nothing illegal or unlawful was recovered.

35. That after being held in a cell inside of the 52 precinct for several hours, Plaintiff was transported to a local Bronx hospital wherein he received medical treatment.

36. That after receiving medical treatment for several hours at the local Bronx hospital, Plaintiff was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.

37. That at after was brought to Bronx COujnty Central Booking he was placed ina cell with other male individuals.

38. That on or about October 30, 2019, Plaintiff was arraigned in Bronx County Criminal Court under docket 2019BX028774 and charged with Forcible Touching, Sexual Abuse in the Third Degree, Harassment in the Second Degree and Resisting Arrest.

39. That at the time of his arraignment, Plaintiff was released on his own recognizance and ordered to return to Court.

40. That on and between October 30, 2019 and October 21, 2021, Plaintiff made numerous court appearances until the matter was dismissed upon application of the Office of the Bronx County District Attorney

41. That at all times hereinafter mentioned, ROSADO and DOES were acting in the course and scope of his employment as a police officer.

42. That at all times hereinafter mentioned, ROSADO and DOES were acting in the course and scope of their employment as police officers for the defendant THE CITY OF NEW YORK.

43. That at all times hereinafter mentioned, ROSADO and DOES were acting in the course and scope of their employment as a police officer for the defendant NEW YORK CITY POLICE

DEPARTMENT.

44. That at all times hereinafter mentioned, it was the duty of the defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, their servants, police officers, agents and/or employees to provide training and supervision to ROSADO and DOES.

45. That at all times hereinafter mentioned, it was the duty of the defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, their servants, police officers, agents and/or employees to provide training and supervision to ROSADO and DOES regarding making lawful arrests.

46. That at all times hereinafter mentioned, it was the duty of the defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, their servants, police officers, agents and/or employees to provide training and supervision to ROSADO and DOES regarding making lawful arrests without using excessive force.

47. That at all times hereinafter mentioned, it was the duty of the defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, their servants, police officers, agents and/or employees to provide training and supervision to ROSADO and DOES regarding making any arrests without using excessive force.

48. That at all times ROSADO and DOES acted in a manner that was wanton and maliciously disregarded the safety, protection and well-being of Plaintiff.

49. Upon information and belief, the above incident occurred because ROSADO and DOES tackled and threw Plaintiff to the ground and forcibly handcuffed him because of the negligent hiring, training, supervising and retaining of ROSADO and DOES who CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT knew or should have known was unfit to act as

a police officer, in failing to ensure that the actions, activities, and behavior of its said servants, agents, police officers, detectives and/or employees conform to the certain standard of conduct established by the law for the protection of others against unreasonable risk of harm; in failing to ensure that its servants, agents, police officers, detectives, and/or employees conducted themselves in such a manner so as to not intentionally and wantonly result in injuries to others, including the claimant herein; in failing to properly train, supervise, manage, and discipline these officers which constitutes liability under 42 U.S.C. 1983, *Monell v. Department of Social Services of New York City*, 436 U.S. 658 (1978), as well as the State Law claims of negligent training, hiring, supervision, management and discipline; in that defendants developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in the County of New York, which caused the violation of Plaintiff's rights; in that defendants inadequately and improperly investigated citizen complaints of police misconduct and instead tolerated such acts of misconduct; in failing to adequately supervise and train its servants, agents, police officers, detectives and/or employees, including the yet to be identified police officers herein, and thereby failed to adequately discourage further constitutional violations on the part of defendants' servants, agents, police officers, detectives and/or employees; that by reason of the above-described practices and customs of defendants, their servants, agents, police officers, detectives and/or employees, including yet to be identified police officers herein, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated and in otherwise being careless, reckless and negligent.

50. That the foregoing attack by ROSADO and DOES and resulting injuries to the Plaintiff were caused solely by reason of the intentional, wanton and willful disregard on the part of the

defendants, and without any negligence on the part of the Plaintiff contributing thereto.

51. That by reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; Plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and Plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to Plaintiff's great damage.

52. That by reason thereof, Plaintiff is entitled to recover for non-economic loss and for all economic losses sustained.

53. That on or about December 18, 2019 and within 90 days after the claim served upon arose, the Plaintiff caused a Notice of Claim, in writing, sworn to by the Plaintiff, containing the name and post office address of the Plaintiff and Plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant THE CITY OF NEW YORK, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

54. That on or about December 18, 2019 and within 90 days after the claim served upon arose, the Plaintiff caused a Notice of Claim, in writing, sworn to by the Plaintiff, containing the name and post office address of the Plaintiff and Plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant NEW YORK CITY POLICE DEPARTMENT, by delivering a copy thereof to the person designated by law as a

person to whom such claims may be served.

55. Thereafter, and on May 26, 2021, a hearing was held pursuant to notice given by defendant THE CITY OF NEW YORK and testimony was taken by said defendant at such hearing, which was duly transcribed and will be sworn to by Plaintiff as required by law and thereafter filed in the office of the Comptroller of the City of New York.

56. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the said defendants.

57. That defendants caused injuries to Plaintiff and refused and neglected to adjust, settle and pay same.

58. That his claim has been commenced and this action has been started within the statutory period of the happening of the event upon which the claim is based.

59. That all conditions and requirements precedent to the commencement of this action have been complied with.

60. That this action falls within one or more of the exceptions set forth in CPLR 1602.

61. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the Plaintiff a non-delegable duty of care.

62. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

63. This action arises under the United States Constitution, particularly under provisions of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

64. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

65. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION

66. That Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

67. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the Plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1983) and arising under the law and statutes of the State of New York.

68. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and

pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

69. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION

70. That Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

71. That at all times herein mentioned, it was the duty of the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

72. That at all times herein mentioned, it was the duty of the said defendants to train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of their servants, agents, police officers, employees and/or personnel.

73. That by reason of the negligence of the defendants in their hiring, monitoring and retention of said employees with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendant's breach

of said duties, the Plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the Plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

74. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

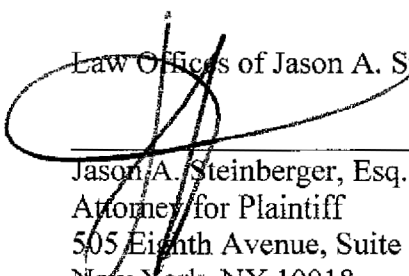
75. That Plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

76. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

77. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

Plaintiff is thus entitled to compensatory and exemplary damages.

WHEREFORE, Plaintiff demands judgment against the defendants, the amounts sought on each cause of action exceeding the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this *incident*.



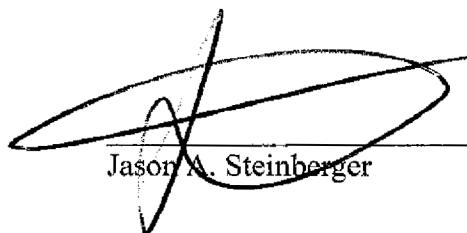
Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger, Esq.
Attorney for Plaintiff
505 Eighth Avenue, Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the Plaintiff is because the Plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the Plaintiff, review of records and documents within affirmant's possession.

Affirmed: June 25, 2021



Jason A. Steinberger